

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
FTEMA RAYSOR,

Plaintiff,

-against-

Index No.:  
Date Filed:

Plaintiff designates  
KINGS COUNTY  
as the place of trial

The basis of the venue  
is Plaintiff's residence

**SUMMONS**

THE CITY OF NEW YORK, POLICE OFFICER  
SAFI, POLICE OFFICERS JOHN DOE 1-2 and,  
POLICE OFFICER JANE DOE (whose names and  
shield numbers are unknown),

Defendant(s).

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York  
October 24, 2018

Yours, etc.

LAW OFFICE OF IKE DIBIA



BY: Ike Dibia  
Attorney for Plaintiff(s)  
801 Franklin Avenue  
Brooklyn, New York 11238  
(718) 230-1517

To:

The City of New York  
c/o Corporation Counsel  
City of New York Law Department  
100 Church Street  
New York, NY 10007

P.O. SAFI  
84<sup>th</sup> Police Precinct  
301 Gold Street  
Brooklyn, NY 11201

P.O. JOHN DOE 1-2  
84<sup>th</sup> Police Precinct  
301 Gold Street  
Brooklyn, NY 11201

P.O. JANE DOE  
84<sup>th</sup> Police Precinct  
301 Gold Street  
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
FTEMA RAYSOR,

Index No.:

Plaintiff,

-against-

**COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER SAFI,  
POLICE OFFICERS JOHN DOE 1-2 and, POLICE  
OFFICER JANE DOE (whose names and shield numbers  
are unknown),

Defendants.

-----X

FTEMA RAYSOR, by her attorneys, LAW OFFICE OF IKE DIBIA,

respectfully alleges as follows:

1. At all times mentioned Plaintiff, FTEMA RAYSOR was and still is a resident of Kings County, City and State of New York.
2. At all times mentioned Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 26<sup>th</sup> day of January 2018, and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on her behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damages and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days (90) days after the happening of the event upon which the claims are based.

5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50 –H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

6. Upon information and belief, at all times mentioned, Defendants P.O. SAFI, P.O's. "JOHN DOE 1-2" and P.O. "JANE DOE" were and are police officers of the Defendant CITY OF NEW YORK, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, CITY OF NEW YORK Police Department.

**AS AND FOR A FIRST CAUSE OF ACTION: ASSAULT AND BATTERY**

7. On or about November 2, 2017, at approximately 9:15 a.m. to 10:30 a.m. in the vicinity of 209 Joralemon Street (also known as Brooklyn Borough Hall), at or close to its intersection with Court Street, County of Kings, State of New York the Plaintiff was placed in apprehension of imminent bodily harm by the Defendants in their capacity as police officers.

8. On or about November 2, 2017, while apprehending Plaintiff, the Defendant police officers, while within the scope of their employment of Defendant CITY OF NEW YORK Police Department, attacked, hit, beat, punched and otherwise assaulted, battered and arrested the Plaintiff.

9. The Plaintiff was thereafter forcefully restrained and then dragged on the ground. The defendant police officers began questioning and interrogating the Plaintiff and made threatening gestures and statements to the plaintiff so as to place the Plaintiff in fear of immediate bodily harm.

10. All of the actions of the police officers were willful, intentional and unwarranted, without any provocation or just cause within the meaning of Penal L. §35.30.

**AND AS FOR A SECOND CAUSE OF ACTION: FALSE IMPRISONMENT**

11. Plaintiff reiterates paragraphs 1 through 10 and incorporates same by reference herein.

12. On or about November 2, 2017, at approximately 9:15 a.m. to 10:30 a.m. in the vicinity of 209 Joralemon Street (also known as Brooklyn Borough Hall), at or close to its intersection with Court Street, County of Kings, State of New York the Defendants, in their capacity as police officers, caused the Plaintiff to be confined or restrained.

13. Defendant Police Officers falsely arrested and imprisoned Plaintiff in violation of the Common Law.

14. The false arrest and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

15. Defendant Police Officers acted with malice and reckless and intentional disregard for Plaintiff's rights under common law when they arrested and imprisoned Plaintiff because they were acting on allegations they knew to be false. Therefore, said Defendant Police Officers are guilty of egregious and gross misconduct toward Plaintiff.

16. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

17. This action falls within one or more of the exceptions of the New York State Civil Practice Laws and Rules Section 1602.

**AND AS FOR A THIRD CAUSE OF ACTION**

18. Plaintiff reiterates paragraphs 1 through 17 and incorporates same by reference herein.

19. By arresting, detaining and imprisoning Plaintiff, without justification, probable cause or reasonable suspicion, the Defendant Officers, deprived Plaintiff of rights, remedies, privileges and immunities guaranteed to every citizen of New York by Article 1, Section 12 of the New York State Constitution.

20. In addition, the Defendant Officers conspired among themselves to deprive Plaintiff of her constitutional rights secured by Article 1, Section 12 of the New York State Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

21. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as New York Police Department Officers. Such acts by Defendant Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of her constitutional rights secured by Article 1, Section 12 of the New York State Constitution.

22. Defendants, their Officers, attorneys, agents, servants and employees were responsible for deprivation of Plaintiff's State Constitutional rights. Defendant CITY OF NEW YORK, as employer of each of the Defendant Officers, is responsible for their wrongdoing under the common law doctrine of respondeat superior.

23. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

24. This action falls within one or more of the exceptions of the New York State Civil Practice Laws and Rules Section 1602.

**AS AND FOR A FOURTH CAUSE OF ACTION: CIVIL RIGHTS VIOLATION**

25. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "24" as if set forth at length herein.

26. On or about November 2, 2017, the Defendant police officers apprehended the Plaintiff, grabbed her by her neck, punched, kicked and violently dragged her.

27. Plaintiff was subsequently taken to the 84<sup>th</sup> Precinct of the New York Police Department where she was searched and then issued bogus summonses containing false allegations of Trespass and Disorderly Conduct.

28. Prior to the arrest of the Plaintiff, the Defendants conspired to and did deprive the Plaintiff of her life and liberty in violation of her rights as guaranteed by the Fourth and Fifth Amendments to the United States Constitution. The Defendants also deprived the Plaintiff of her right not to be deprived of life and liberty without due process of law as guaranteed by the Fourth and Fifth Amendments of the United States Constitution. All of the Plaintiff's rights were violated by defendants by use of brutal, excessive, unreasonable and unnecessary physical force upon the Plaintiff.

29. Upon information and belief, defendants P.O. SAFI, P.O.'s "JOHN DOE 1-2" and P.O. "JANE DOE" utilized this method of detaining and apprehending Plaintiff pursuant to a policy and procedure of Defendant CITY OF NEW YORK, which policy and procedure authorized such a method of apprehension in all cases where individuals attempt to evade arrest without consideration of the degree or nature of the wrongful conduct for which the subject is allegedly sought and without regard to the constitutional rights of life, liberty and due process of the individual.

30. As a proximate result of the conduct of the Defendants, the Plaintiff suffered mental, physical and emotional pain and suffering and was deprived of her United States Constitutional rights of life, liberty and due process, all to her damage in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction over this cause of action.

31. By reason of the willful, reckless and malicious conduct of the Defendants, the Plaintiff is entitled to recover punitive damages.

**AS AND FOR A FIFTH CAUSE OF ACTION: UNLAWFUL SEARCH  
UNDER 42 U.S.C § 1983**

32. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 31 of this complaint as though fully set forth herein.

33. Following Plaintiff's arrest, the defendants searched and/or caused Plaintiff and her property to be searched, without any individualized reasonable suspicion that she was concealing weapons or contraband.

34. As a result of the foregoing, Plaintiff and/or her property was subjected to an illegal and improper search.

35. The foregoing unlawful search violated Plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF:  
FAILURE TO INTERVENE UNDER 42 U.S.C § 1983**

36. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 35 of this complaint as though fully set forth herein.

37. Each and every individual Defendant had an affirmative duty to intervene on each Plaintiff's behalf to prevent the violation to her constitutional rights, as more fully set forth above.

38. The individual Defendants failed to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.

39. As a consequence of said defendants' actions, Plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and her constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

40. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "39" as if set forth at length herein.

41. Defendant CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and

seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

42. Defendant, CITY OF NEW YORK was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of the City of New York are not to arrest individuals such as the plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

43. Defendant, CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Excessive force cannot be used against an individual who does not physically resist arrest.
2. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

44. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to commit an assault/battery to Plaintiff's person and denied her prompt medical attention under the

belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR AN EIGHTH CAUSE OF ACTION**

45. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "44" as if set forth at length herein.

46. Defendant CITY OF NEW YORK was negligent in that prior to and at the time of the acts complained of herein due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not use excessive force during the arrest process.

**WHEREFORE**, Plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each Plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York  
October 24, 2018

Yours etc.

LAW OFFICE OF IKE DIBIA



By: Ike Dibia  
Attorney for Plaintiff  
801 Franklin Avenue, Ground Floor  
Brooklyn, New York 11238  
(718) 230-1517